

Conditionally Under Seal, filed 10/30/25.) Contrary to Petitioner’s 10/30/25 Motion, the unredacted copies were not “filed conditionally under seal” and are not, and were never, part of the Court file. (See Notice of Motion, 2:7.) By correspondence dated February 18, 2026, the Court notified the parties that it was returning the lodged, unredacted copies to counsel as the underlying motion to disqualify was withdrawn. Thus, the Court no longer has the unredacted copies in its possession.

Moreover, given that the underlying motion to which the Subject Documents were filed in opposition—i.e., Respondent’s 10/16/25 motion to disqualify—was withdrawn by Respondent’s counsel, there is no need for the Subject Documents in the court file (either redacted or unredacted). The motion to disqualify was withdrawn pursuant to the 2/2/26 Minute Order, which states that “[Respondent’s counsel] advised the Court that the Motions before the Court were being withdrawn at this time.” (2/2/26 Minute Order.) Respondent’s motions before the Court on 2/2/26 were the 10/16/25 motion to seal and 10/16/25 motion to disqualify. While Petitioner argues that his 10/30/25 motion to seal was improperly taken off calendar in response to the 2/2/26 Minute Order, Petitioner does not contend that the withdrawal of Respondent’s motions was inaccurate. (See Lewis Decl., ¶¶ 7-8.) Nor is there any other indication from Petitioner’s 6/3/26 *Ex Parte* Application or the Court file that the motion to disqualify is, or should be, on calendar. Rather, Petitioner merely argues that his motion to seal must be reset to avoid “a risk that the confidential attorney-client communications at issue in the Motion [] become part of the public record” (*Id.*, ¶ 14.)

Because unredacted copies of the Subject Documents are neither in the Court file nor in the Court’s possession via lodgment, and because there is no need for the unredacted copies to be in the Court file, the Motion to seal the unredacted version of those documents is moot. Thus, the Motion is DENIED.

To the extent either party contends that there is a need for the unredacted version of the Subject Documents to be in the Court file, the present Motion must be continued to allow Petitioner to lodge the unredacted version of the Subject Documents. Any party so contending should request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In the Matter of The Trudy Muffet Living Trust

26PR000035

AMENDED PETITION TO DETERMINE AND CONFIRM SUCCESSOR TRUSTEE

TENTATIVE RULING: The petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Julianne Wurm v. James Pitkow et al

24CV000921

PLAINTIFF’S MOTION TO WAIVE UNDERTAKING UNDER CODE OF CIVIL PROCEDURE SECTION 995.240 AND FOR STAY OF ENFORCEMENT OF MONEY JUDGMENT PENDING APPEAL; ALTERNATIVELY, FOR TEMPORARY STAY UNDER CODE OF CIVIL PROCEDURE SECTION 918 PENDING HEARING AND DETERMINATION (filed 5/8/26)

TENTATIVE RULING: The motion is DENIED.

Plaintiff Julianne Wurm moves, pursuant to Code of Civil Procedure sections 917.1 and 995.240,¹ for an order staying enforcement of the judgment pending appeal with waiver of an undertaking. Alternatively, Plaintiff moves, pursuant to section 918, for a temporary stay of the judgment pending hearing and determination of this motion.

The default rule is that, “[u]nless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is ... [m]oney or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action.” (§ 917.1, subd. (a)(1), emphasis added.)

However, “[t]he court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient sureties, whether personal or admitted surety insurers. In exercising its discretion the court shall take into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived.” (§ 995.240.)

“A party seeking relief under this statute must make a motion to the trial court and has the burden of proving he was in fact indigent.” (*Burkes v. Robertson* (2018) 26 Cal.App.5th 334, 346, citing *Fuller v. State of California* (1969) 1 Cal.App.3d 664, 668, 670-71 [party seeking waiver must establish both financial need and effort to obtain a bond].)

Here, Plaintiff contends she is indigent under section 995.240 and cannot obtain sufficient sureties. Plaintiff’s showing as to each point is woefully insufficient. Plaintiff’s Declaration sets forth financials which do not establish or suggest indigency. (Pltf Decl., ¶¶ 9-14.) Her Declaration also fails to set forth facts establishing an inability to obtain sufficient sureties. On this point, the Declaration merely provides that Plaintiff was informed that the equity in one of her two homes might cover the judgment but would not cover the additional cost of bond. (*Id.*, ¶ 16.) That does not establish that Plaintiff, in consideration of the universe of assets detailed in her Declaration (or otherwise), cannot obtain a bond. Defendants argue in

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.